



Code: JHFE
Adopted: 7/21/21

Reporting of Suspected Abuse of a Child**

Any HCCS employee who has reasonable cause to believe that **any child** with whom the employee has come in contact has suffered abuse¹ shall orally report or cause an oral report immediately by telephone or otherwise to the local office of the Oregon Department of Human Services (DHS) or its designee or to the law enforcement agency within the county where the person making the report is located at the time of the contact pursuant to Oregon Revised Statute (ORS) 419B.010. Any school employee who has reasonable cause to believe that **any adult or student** with whom the employee is in contact has abused a child shall immediately report or cause a report to be made in the same manner to DHS or its designee or to the law enforcement agency within the county where the person making the report is located at the time of the contact pursuant to ORS 419.010. If known, the report shall contain the names and addresses of the child and the parents of the child or other persons responsible for the child's care, the child's age, the nature and extent of the suspected abuse, including any evidence of previous abuse, the explanation given for the suspected abuse, any other information that the person making the report believes might be helpful in establishing the possible cause of the abuse and the identity of a possible perpetrator.

Abuse of a child by HCCS employees, contractors², agents³, volunteers⁴, or students will not be tolerated. All school employees, contractors, agents, volunteers and students are subject to this policy and the accompanying administrative regulation.

Any HCCS employee who has reasonable cause to believe that another school employee, contractor, agent, volunteer or student has engaged in abuse, or that a student has been subjected to abuse by another school employee, contractor, agent, volunteer or student shall immediately report such to the Oregon Department of Human Services (DHS) or its designee or the local law enforcement agency pursuant to ORS 419B.015, and to the designated licensed administrator.

HCCS will designate a licensed administrator and an alternate licensed administrator in the event that the designated licensed administrator is the suspected abuser for each school building to receive reports of suspected abuse of a child by public charter school employees, contractors, agents, volunteers or students. If the administrator is the alleged abuser the report shall be submitted to the alternate licensed administrator who shall refer the report to the Board chair.

¹ Includes the neglect of a child; abuse is defined in ORS 419B.005.

² "Contractor" means a person providing services to the public charter school under a contract in a manner that requires the person to have direct, unsupervised contact with students.

³ "Agent" means a person acting as an agent for the public charter school in a manner that requires the person to have direct, unsupervised contact with students.

⁴ "Volunteer" means a person acting as a volunteer for the public charter school in a manner that requires the person to have direct, unsupervised contact with students.

HCCS will post the name and contact information of the designees for each school building designated to receive reports of suspected abuse and the procedures the designee will follow upon receipt of a report, the contact information for local law enforcement and the local DHS office or its designee and a statement that the duty to report suspect abuse is in addition to the requirements of reporting to the designated licensed administrator.

When a designee receives a report of suspected abuse, the designee will follow procedure established by the public charter school and set forth in administrative regulation JHFE-AR(1) - Reporting of Suspected Abuse of a Child. All such reports of suspected abuse will be reported to a law enforcement agency or DHS, or its designee, for investigation, and the agency will complete an investigation regardless of any changes in the relationship or duties of the person who is the alleged abuser.

When there is reasonable cause to support the report, a HCCS employee suspected of abuse shall be placed on paid administrative leave pending an investigation and the school will take necessary actions to ensure the student's safety. When there is reasonable cause to support the report, a HCCS contractor, agent or volunteer suspected of abuse shall be removed from providing services to the school and the school will take necessary actions to ensure the student's safety.

HCCS will notify the person, as allowed by state and federal law, who was subjected to the suspected abuse of any actions taken by the school as a result of the report.

A substantiated report of abuse by an employee shall be documented in the employee's personnel file. A substantiated report of abuse by a student shall be documented in the student's education record.

The initiation of a report in good faith, pursuant to this policy, may not adversely affect any terms or conditions of employment or the work environment of the person initiating the report or who may have been subjected to abuse. If a student initiates a report of suspected abuse of a child by a school employee, contractor, agent, volunteer or student, in good faith, the student will not be disciplined by the school or any school employee, contractor, agent or volunteer. Intentionally making a false report of abuse of a child is a Class A violation.

HCCS shall provide training each school year to school employees on the prevention and identification of abuse, the obligations of school employees under ORS 339.388 and ORS 419B.005 - 419B.050 and as directed by Board policy to report suspected abuse of a child, and appropriate electronic communications with students. The school shall make available each school year the training described above to contractors, agents, volunteers, and parents and legal guardians of students attending HCCS-operated schools, and will be made available separately from the training provided to school employees. The school shall provide each school year information on the prevention and identification of abuse, the obligations of school employees under Board policy to report abuse, and appropriate electronic communications with students to contractors, agents and volunteers. The school shall make available each school year training that is designed to prevent abuse to students attending HCCS-operated schools.

HCCS shall provide to a school employee at the time of hire, or to a contractor, agent, or volunteer at the time of beginning service for the school, the following:

1. A description of conduct that may constitute abuse;
2. A description of the investigatory process and possible consequences if a report of suspected abuse is substantiated; and

3. A description of the prohibitions imposed on public charter school employees, contractors, and agents when they attempt to obtain a new job, as provided under ORS 339.378. A public charter school employee, contractor or agent will not assist another public charter school employee, contractor or agent in obtaining a new job if the individual knows, or has reasonable or probable cause to believe the public charter school employee, contractor or agent engaged in abuse, unless criteria found in ORS 339.378(2)(c) are applicable.

Nothing in this policy prevents HCCS from disclosing information required by law or providing the routine transmission of administrative and personnel files pursuant to law.

HCCS shall make available to students, school employees, contractors, agents, and volunteers a policy of appropriate electronic communications with students.

Any electronic communications with students by a contractor, agent or volunteer for the school will be appropriate and only when directed by school administration. When communicating with students electronically regarding school-related matters, contractors, agents or volunteers shall use school e-mail, using mailing lists and/or other internet messaging to a group of students rather than individual students or as directed by school administration. Texting or electronically communicating with a student through contact information gained as a contractor, agent or volunteer for the school is strongly discouraged.

The administrator/principal shall develop administrative regulations as are necessary to implement this policy and to comply with state law.

END OF POLICY

Legal Reference(s):

[ORS 339.370 - 339.400](#)
[ORS 418.257 - 418.259](#)

[ORS 419B.005 - 419B.050](#)

[OAR 581-022-2205](#)

Greene v. Camreta, 588 F.3d 1011 (9th Cir. 2009), vacated in part by, remanded by Camreta v. Greene, 131 S. Ct. 2020 (U.S. 2011); vacated in part, remanded by Greene v. Camreta 661 F.3d 1201 (9th Cir. 2011).

Cross Reference(s):

GBNAA/JHFF - Reporting Requirements for Suspected Sexual Conduct with Students
GCAB - Personal Electronic Devices and Social Media - Staff
JHFF/GBNAA - Reporting Requirements for Suspected Sexual Conduct with Students